

COMMITTEE ON GOVERNMENT
SENATE AMENDMENTS TO S.B. 1567
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 38, chapter 3, article 4, Arizona Revised
3 Statutes, is amended by adding section 38-452, to read:

4 38-452. Sexually explicit materials; prohibition; violation;
5 classification; definitions

6 A. THIS STATE OR A STATE AGENCY, CITY, TOWN, COUNTY OR POLITICAL
7 SUBDIVISION OF THIS STATE MAY NOT EXPOSE MINORS TO SEXUALLY EXPLICIT
8 MATERIALS AND SHALL PROHIBIT ITS CONTRACTORS FROM EXPOSING MINORS TO
9 SEXUALLY EXPLICIT MATERIALS.

10 B. A FACILITY OR PROPERTY OWNED, LEASED OR MANAGED BY A PERSON OR
11 ENTITY PRESCRIBED BY SUBSECTION A OF THIS SECTION MAY NOT BE USED FOR
12 FILMING OR FACILITATING SEXUALLY EXPLICIT ACTS.

13 C. A PERSON THAT ACTS WITH CRIMINAL NEGLIGENCE IN VIOLATION OF THIS
14 SECTION IS GUILTY OF A CLASS 5 FELONY.

15 [D. THIS STATE OR A STATE AGENCY, CITY, TOWN, COUNTY OR POLITICAL
16 SUBDIVISION OF THIS STATE SHALL REQUIRE ANY INDIVIDUAL WHO IS HIRED AS AN
17 EMPLOYEE OR INDEPENDENT CONTRACTOR OF THIS STATE OR THE STATE AGENCY,
18 CITY, TOWN, COUNTY OR POLITICAL SUBDIVISION OF THIS STATE ON OR AFTER THE
19 EFFECTIVE DATE OF THIS SECTION TO SIGN A FORM ACKNOWLEDGING THAT THE
20 INDIVIDUAL HAS READ THIS SECTION ON THE DATE THAT THE INDIVIDUAL IS
21 HIRED.]

22 [D.] [E.] FOR THE PURPOSES OF THIS SECTION:

23 1. "SEXUAL CONDUCT" MEANS ACTS OF MASTURBATION, SEXUAL INTERCOURSE
24 OR PHYSICAL CONTACT WITH A PERSON'S CLOTHED OR UNCLOTHED GENITALS, PUBIC
25 AREA OR BUTTOCKS OR THE FEMALE BREAST.

26 2. "SEXUAL EXCITEMENT" MEANS THE CONDITION OF HUMAN MALE OR FEMALE
27 GENITALS WHEN IN A STATE OF SEXUAL STIMULATION OR AROUSAL.

1 3. "SEXUALLY EXPLICIT MATERIALS" INCLUDES TEXTUAL, VISUAL OR AUDIO
2 MATERIALS OR MATERIALS ACCESSED VIA ANY OTHER MEDIUM THAT DEPICT ANY OF
3 THE FOLLOWING:

4 (a) SEXUAL CONDUCT.

5 (b) SEXUAL EXCITEMENT.

6 (c) ULTIMATE SEXUAL ACTS.

7 4. "ULTIMATE SEXUAL ACTS" MEANS SEXUAL INTERCOURSE, VAGINAL OR
8 ANAL, FELLATIO, CUNNILINGUS, BESTIALITY OR SODOMY.

9 <<Sec. 2. Implementation

10 [This state or a state agency, city, town, county or political
11 subdivision of this state shall require each individual who is employed as
12 an employee or independent contractor of this state or the state agency,
13 city, town, county or political subdivision of this state on the effective
14 date of this act to sign a form acknowledging that the individual has read
15 section 38-452, Arizona Revised Statutes, as added by this act.]>>

16 Enroll and engross to conform

17 Amend title to conform

1567GOV.docx

02/04/2026

05:11 PM

C: AH

130RKDMNU